

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/05/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**DECLARATION OF
TYLER J. O'CONNELL IN SUPPORT
OF OPPOSITION TO PLAINTIFF'S
MOTION TO DEEM ADMITTED,
COMPEL, AND FOR SANCTIONS**

Hearing Date: May 18, 2026

Time: 9:00 a.m.

Dept: 302

Judge: Joseph M. Quinn

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant CSAA
4 INSURANCE EXCHANGE (hereinafter "Defendant"). This declaration is submitted in support of
5 Defendant's Opposition to Plaintiff's Motion to Deem Admitted, Compel, and for Sanctions. The
6 following facts are within my personal knowledge and, if called as a witness herein, I can and will
7 competently testify thereto.

8 2. On April 9, 2026, I caused to be filed with the Court and served on Plaintiff by
9 Certified Mail and courtesy copy via email a copy of Defendant's Special Motion to Strike per Code
10 Civ. Proc. § 425.16 ("Anti-SLAPP motion"). (Attached hereto as **Exhibit A** is a true and correct
11 copy of my office's courtesy email service of the Anti-SLAPP motion, having been properly served
12 by Certified Mail.)

13 3. Defendant's Anti-SLAPP motion is based on the nature of Plaintiff's allegations as
14 contained in the original Complaint and in the First Amended Complaint ("FAC"). Plaintiff's
15 allegations squarely target Defendant's litigation conduct all from Plaintiff's underlying personal
16 injury jury trial—which Plaintiff lost by defense verdict in April 2025.

17 4. Prior to filing the Anti-SLAPP motion, I informed Plaintiff in writing, and on a phone
18 call, of my intention of filing an Anti-SLAPP motion should he not withdraw the FAC, in its
19 entirety—as the entirety of the purported legal theories in Plaintiff's FAC focus inextricably on
20 Defendant's protected litigation conduct.

21 5. Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone
22 calls. And Defendant's Anti-SLAPP motion was properly filed on April 9, 2026.

23 6. On April 22, 2026, weeks after Defendant's Anti-SLAPP motion had been filed,
24 Plaintiff sent an email to my office purporting to serve further discovery requests and the instant
25 "motion to deem admitted, compel, and for sanctions." (Attached hereto as **Exhibit B** is a true and
26 correct copy of Plaintiff's April 22, 2026 email serving the instant motion.)

27 7. Included in Plaintiff's April 22, 2026 email was a bevy of further discovery requests,
28 specifically a sixth set of discovery. Heretofore none of Plaintiff's written discovery requests have

1 been properly or consecutively numbered and Plaintiff has failed to serve his written discovery
2 requests—far beyond the number of requests allowed under the Code—with Code-compliant
3 supporting declarations to justify those requests being far beyond the number allowed under the
4 Code.

5 8. Plaintiff never provided proper notice of the hearing date for this “motion to deem
6 admitted, compel, and for sanctions,” and therefore the only way I was able to determine the hearing
7 date was by perusing the Court’s docket in this matter.

8 9. Upon review of the Court’s docket I determined the hearing for Plaintiff’s “motion
9 to deem admitted, compel, and for sanctions” was set for May 18, 2026.

10 10. Plaintiff has sent several emails and voicemails in this matter, threatening to report
11 Defendants’ counsel to the California State Bar, unless Defendants’ counsel “vacates Defendants’
12 Anti-SLAPP motion.” (Attached hereto as **Exhibit C** are true and correct copies of Plaintiff’s recent
13 email correspondences to my office making these threats.)

14 11. On Friday May 1, 2026, Plaintiff left a voicemail on my office phone wherein he
15 said: “Hello, Mr. O’Connell. This is Mr. Rosario calling you at exactly 1:13 pm on Friday, May 1st,
16 on an attempted meet and confer regarding your substantial pleadings before the California Superior
17 Court regarding a number of details specifically around your Anti-SLAPP, the demurrer, and your
18 special motion for your motion for dismissal, whatever you’re seeking here. As you noticed in my,
19 our, analysis here that we have found that you have the same effect of spine going across each of
20 the cases, which includes the fact that you are claiming Anti-SLAPP protection under 425.16 which
21 is explicitly denied to you under 425.17(c) as it clearly states, insurance, sales claims handling, and
22 claims litigation context, any form of Anti-SLAPP is black letter law, unavailable to you. If you
23 continue to proceed with the motions, note that the State of California Superior Court and the
24 Department of Business, the Bar Association will hold you accountable for filing motions that are
25 unavailable and are against the California law and statutes. So, I still implore you to please consider
26 your, to vacate these orders [referring to Defendants’ pending Anti-SLAPP motion, Demurrer, and
27 Motion to Strike] or stand accountable to the consequences. I do hope you make the right choice.”¹
28

¹ I am able to provide the Court with an electronic audio recording of this voicemail, should the Court request.

12. My attorney's fees in this action are invoiced at a billable rate of \$210 per hour and I spent 2.5 hours in preparing this Opposition and Declaration, gathering and marking exhibits, and preparing for the hearing on this motion. I anticipate spending another 2 hours attending the hearing for this motion. Hence, in total my attorney's fees expended in opposing this motion are: **\$945.00.**

I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on May 5, 2026, at Sacramento, California.

Tyler J. O'Connell
Tyler J. O'Connell

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EXHIBIT A

Serena Blithe

From: Tyler O'Connell
Sent: Friday, April 10, 2026 10:33 AM
To: Dylan Rosario
Cc: Monique Schubert; Chad S. Tapp
Subject: Rosario v CSAA; CGC-25-631802
Attachments: (2) NTC - Anti-SLAPP.pdf; (2) Prop Order - Anti-SLAPP.pdf; (2) DEC of TOC - Anti-SLAPP.pdf; (2) RFJN - Anti-SLAPP.pdf; (2) MPAs - Anti-SLAPP.pdf

Good morning, Mr. Rosario.

Please see the attached courtesy copy of the Anti-SLAPP motion, with request for attorneys' fees, being mail-served on you and filed with the court today in Case CGC-25-631802.

Thank you,



Tyler J. O'Connell

Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

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EXHIBIT B

Serena Blithe

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Wednesday, April 22, 2026 10:38 PM
To: Monique Schubert; Tyler O'Connell; Maria Reyes; Veronica Jackson; Chad S. Tapp; Rebekah.Morrissey@csaa.com
Cc: Dylan Rosario
Subject: CGC-25-631802 — Rosario v. CSAA Insurance Exchange | Electronic service — Discovery + SANCTIONS
Attachments: 802-TRACK1-03-SEPARATE-STATEMENT.pdf; 802-TRACK1-04-DECL-ROSARIO.pdf; 802-TRACK1-02-MPA-DEEM-COMPEL-SANCTIONS.pdf; 802-TRACK1-01-NTC-DEEM-COMPEL-SANCTIONS.pdf; 99-POS-050-PROOF-OF-ELECTRONIC-SERVICE.pdf; 802-TRACK1-05-PROPOSED-ORDER.pdf; 802-TRACK2-01-SET-SIX-RFA.pdf; 802-TRACK2-04-SET-SIX-RFP.pdf; 802-TRACK2-02-SET-SIX-FORM-INTERROG-17-1.pdf; 802-TRACK2-03-SET-SIX-SPECIAL-INTERROG.pdf; 802-TRACK2-05-DECL-ADDITIONAL-DISCOVERY.pdf; 802-TRACK3-01-NOTICE-OF-DEFAULT.pdf; 802-TRACK3-02-CMC-STATEMENT-UPDATE.pdf

External email

Counsel:

Please accept **electronic service** of the following PDFs, **Tier A → Tier B → Tier C → POS-050 last**, in *Franciscus Dylan Rosario v. CSAA Insurance Exchange*, Case No. **CGC-25-631802** (Dept. **302**):

Tier A — Track 1 (motion to deem admitted, compel, sanctions):

1. [802-TRACK1-01-NTC-DEEM-COMPEL-SANCTIONS.pdf](#)
2. [802-TRACK1-02-MPA-DEEM-COMPEL-SANCTIONS.pdf](#)
3. [802-TRACK1-03-SEPARATE-STATEMENT.pdf](#)
4. [802-TRACK1-04-DECL-ROSARIO.pdf](#)
5. [802-TRACK1-05-PROPOSED-ORDER.pdf](#)

Tier B — Track 2 (Set Six):

6. [802-TRACK2-01-SET-SIX-RFA.pdf](#)
7. [802-TRACK2-02-SET-SIX-FORM-INTERROG-17-1.pdf](#)
8. [802-TRACK2-03-SET-SIX-SPECIAL-INTERROG.pdf](#)
9. [802-TRACK2-04-SET-SIX-RFP.pdf](#)
10. [802-TRACK2-05-DECL-ADDITIONAL-DISCOVERY.pdf](#)

Tier C — Track 3:

11. [802-TRACK3-01-NOTICE-OF-DEFAULT.pdf](#)

12. [802-TRACK3-02-CMC-STATEMENT-UPDATE.pdf](#)

13. [802-TRACK3-03-RESERVED-2023-030-PACKET.pdf](#) (*standby; not for filing*)

POS-050: [99-POS-050-PROOF-OF-ELECTRONIC-SERVICE.pdf](#)

Executed on April 22, 2026, at Rohnert Park, California.

Franciscus Dylan Rosario

Plaintiff, in pro per

7624 Melody Drive, Rohnert Park, CA 94928

Tel. 650.488.7510

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EXHIBIT C

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Monday, April 20, 2026 12:15 PM
To: Tyler O'Connell; Dylan Rosario
Subject: Fwd: Rosario v CSAA; CGC-25-631801
Attachments: GLOBAL-SETTLEMENT-LETTER-TO-DEFENSE-PLAINTIFF.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

External email

Subject: Meet and Confer Regarding Procedural and Substantive Defects in Pending Motions
Tyler,

I hope your weekend was pleasant. Please accept my apologies for the delay in delivering these responses and the SAC earlier this week; my schedule was occupied by preparations for a guest lecture at Stanford University this past Friday.

While the drafts were finalized last Thursday, a minor logistical issue with my printer—specifically running out of paper during the high-volume printing of the 802 case filings—provided me with a brief window to further refine the responses for the 801 case. I trust you will excuse the slight delay, as it allowed me to meticulously address and invert every one of your objections and claims.

To be direct, I was surprised by the magnitude of the errors, misinterpretations, and overbroad claims contained within your motions. While your strategy to relabel the legal standing and basis of the case was an interesting attempt, it unfortunately lacks the fundamental legal standards required to survive scrutiny and completely omits the controlling legal authorities governing your claims.

I am certain you will find the enclosed comprehensive critique of your work product enlightening. **As you are aware, a court cannot—and will not—permit a deficient pleading rooted in a misinterpretation of "Black Letter Law."** Judges have a strong distaste for seeing their rulings appealed due to a counsel's lack of legal acumen; therefore, I suspect the court will find these structural flaws as problematic as I have.

Upon a comprehensive audit of the Anti-SLAPP and Demurrer motions filed in both cases, I have documented a series of pervasive and fatal errors. To be direct: the tactics employed in these four motions are procedurally invalid.

For over 25 years, my career has been defined by identifying and correcting critical failures in arcane, high-complexity systems—from supercomputers to artificial intelligence models. I approach legal pleadings with that same discerning eye for "bugs." When I am motivated to find systemic errors, very little escapes my review. I have been trained and employed at the world's largest trillion-dollar companies, where my specific role was to identify and correct every single deficiency within a complex system. This is quite literally my career: solving complex problems by identifying and neutralizing structural flaws.

My primary concern here is not the litigation itself, but the potential for these filings to permanently taint your professional record. I understand you have a significant career ahead of you, and a

negative mark on your Bar license is a complication you likely wish to avoid. I am intimately familiar with the gravity of Bar Association inquiries; I previously assisted my ex-wife in drafting her formal response during a disciplinary proceeding that threatened her license. It is a process I would not wish on any practitioner.

!! Notice of Statutory Consequences and Fee Exposure regarding Anti-SLAPP and Demurrer Filings

I am providing a formal summary of the specific statutory consequences currently triggered by the defense's recent filings. As someone who has spent a career debugging high-complexity systems, I view these motions through the lens of structural integrity. Currently, the structural failures in these papers have created significant personal and firm-wide exposure under the California Code of Civil Procedure. The issues within these motions are not merely strategic disagreements; they are fundamental legal failures:

1. Mandatory Attorney's Fees under CCP § 425.16(c)(1)

The Anti-SLAPP statute is a "two-edged sword." While it offers a stay of discovery, it also carries a mandatory fee-shifting provision. Under subdivision (c)(1), the court **must** award attorney's fees to a prevailing plaintiff if a motion is found to be frivolous or intended solely for delay.

Your filings meet this "frivolous" threshold due to several systemic "bugs" that ignore governing Supreme Court mandates:

- **The *Park/Bonni* Omission:** Filing a motion that entirely skips the mandatory gravamen analysis required by *Park v. Board of Trustees* and *Bonni v. St. Joseph Health*.
- **Procedural Creep:** The improper importation of Step-Two probability language (per *Huntingdon*) into the Step-One inquiry, a practice expressly prohibited by *Baral v. Schnitt*.
- **The Privilege "Blob":** Applying a blanket litigation privilege under § 47(b) while omitting the limiting "communicative act" rule established in *Kimmel v. Goland*.
- **Selective Reading of *Flatley* and *Zhang*:** Ignoring the "illegal as a matter of law" exception in *Flatley* and the preserved common law fraud lanes in *Moradi-Shalal* and *Zhang*.

When a motion ignores the very Supreme Court authorities that define the standard of review, the motion is no longer "warranted by existing law."

2. Sanctions and Personal Exposure under CCP § 128.7 and § 128.5

Beyond fee-shifting, the specific omission of *Park*, *Kimmel*, and the mischaracterization of *Moradi-Shalal* (specifically the preservation of fraud at p. 305) serve as predicates for sanctions under **CCP § 128.7**.

As you are aware, § 128.7 targets legal contentions that are not supported by a good-faith argument for the extension or modification of existing law. Presenting the court with an "incomplete" version of the law to secure a dismissal is a high-risk tactic. Furthermore, under **§ 128.5**, the use of these "bad-faith tactics" to cause unnecessary delay subjects the individual attorney to monetary and procedural penalties that become a matter of public record.

3. Immediate Procedural Reversal

Finally, it is worth noting the immediate tactical cost of a denied Anti-SLAPP motion. Upon the court's denial of these motions due to the failures cited above, the discovery stay under **§ 425.16(g)** is immediately lifted. The defense will have gained nothing but a mandatory bill for my attorney's fees and a documented finding of "frivolous conduct" by the court.

I am highlighting these "fatal errors" now to provide you an opportunity to correct the record. I have no personal interest in seeing a colleague face Bar-notified sanctions; however, I am fully prepared to enforce these statutes to protect the integrity of the pleadings.

4. Personal and Statutory Consequences

The consequences of these errors are prescribed by statute, not personal animosity:

- **Mandatory Fees:** Under **CCP § 425.16(c)(1)**, an Anti-SLAPP motion found to be frivolous or intended for delay carries a mandatory award of attorney's fees.
- **Evidentiary Exposure:** The inclusion of legal conclusions and mischaracterizations within your sworn declaration creates personal exposure under the "sham declarant" doctrine and risks a strike of the entire record.

Regarding the Court's Inherent Inability to Grant Your Motions

Beyond the specific errors I have documented, there is a fundamental procedural reality you must consider: even if the Court were inclined to entertain your arguments, it is legally precluded from granting deficient motions as a matter of law.

1. The Violation of Judicial Economy

Under **CCP § 128**, the Court is mandated to preserve judicial economy. A motion that applies the wrong legal standard—such as a Demurrer that imports extrinsic evidence—is "facially deficient." For a judge to grant a "speaking demurrer" would be a clear abuse of discretion and an invitation for an immediate appellate reversal. The Court will not risk its own record to accommodate a motion that ignores the "four corners" rule of *Serrano v. Priest*.

2. The Statutory Rigidity of CCP § 425.16

The Anti-SLAPP statute is not a discretionary suggestion; it is a rigid, sequenced formula. As a matter of law, the Court cannot jump to a "Step Two" probability analysis if the "Step One" gravamen test is not met. By bypassing the mandates of *Park* and *Bonni*, your motion effectively asks the Court to exceed its statutory authority. A judge cannot "lower the landing gear" on a motion where the primary elements are missing.

3. The Mandate of the "Black Letter Law"

The California Supreme Court's rulings in *Flatley*, *Kimmel*, and *Baral* are not merely persuasive; they are binding. When a filing omits the "illegal as a matter of law" exception or misapplies the litigation privilege to non-communicative conduct, it ceases to be a "good faith" argument. The Court has an affirmative duty to protect the integrity of the record, and it cannot allow a motion to proceed that is not "warranted by existing law" under **CCP § 128.7**.

4. The Non-Discretionary Nature of Sanctions

Finally, you should be aware that once a motion is found to be frivolous under **§ 425.16(c)(1)**, the Court's power to award fees is not discretionary—it is mandatory. The law is designed to "debug" itself by penalizing the filing of broken procedural code.

To put it plainly: the Court will not, and cannot, ignore these deficiencies to save a party from the consequences of their own pleadings. **You are currently asking the Bench to commit reversible error on your behalf.**

Professional Posture

The responsibility for these filings rests solely with the attorney of record (that being you Tyler oConnell Esq.). I maintain a posture of indifference toward your internal strategy; however, I am

compelled to highlight these defects now to ensure the record remains untainted. I am prepared to allow you to walk away from these errors cleanly if you choose to vacate these motions. If you proceed, I will be forced to place these fatal defects before the court.

My objective is not personal conflict, but to ensure this litigation returns to a footing of procedural competence and substantive merit. I would prefer that you not compromise your standing by persisting with motions that lack a good-faith basis in established law.

If you would like, we can have a phone call to discuss exactly what I intend to present to the judge. I am prepared to detail precisely why your motions in both cases are procedurally deficient and must be denied as a matter of law. Following those denials, I will move the court to hold both you and your firm accountable for these filings. I strongly suggest you reconsider this trajectory and move toward a substantive answer before the Court is forced to issue a mandate that will become a permanent part of your professional history.

As we discussed in our previous call, there are court-imposed fee-shifting provisions designed specifically to address the filing of such error-riddled and deficient motions. Unfortunately, once these frivolous arguments are on the record, one cannot simply "unring the bell."

At this juncture, I strongly suggest you stop digging this hole for yourself and your client. You have reached a point where the most prudent course of action is to abandon these failed tactics and provide a serious, substantive answer to the complaint. You have the opportunity to do this voluntarily now; if you decline, the court will eventually mandate it, likely alongside a significant order for sanctions and fees. It would be in everyone's best interest to return this litigation to a footing of professional competence before the court is forced to intervene.

Tyler, consider this my final courtesy notice regarding the impending professional consequences for both you and your client.

It would truly be a pity to see you compromise your professional integrity—a mere two years after graduating from McGeorge School of Law—simply to satisfy a client's appetite for expensive tactical errors. I would hate for a practitioner with so much "runway" ahead of them to commit a series of fundamental mistakes so profound they become a permanent footnote to their career.

In any event, it is worth remembering that a "war of attrition" only works when the law is on your side. When the record demonstrates clear liability, the only thing you are successfully attriting is your own credibility. I suggest you forward my global settlement letter to the CSAA Litigation Reservation Risk Team immediately. You should probably inform them that your attempt to paralyze the proceedings has hit a significant procedural wall, and that—as my materials clearly outline—CSAA's choices are now limited to making a legitimate offer or bracing for the discovery phase.

If CSAA is expected to bankroll your incoming sanctions and fees, I trust you will have the candor to forward this communication to them. It is only fair they understand that when presented with a clear exit ramp to avoid fatal motion flaws and mandatory fee-shifting, you chose to keep digging. There is an old adage about what to do when you find yourself in a hole; I suggest you stop before you hit bedrock.

Sometimes, when someone falls down, they refuse to stay down. In this case, let's see if you have that capacity. Conduct yourself accordingly.

Good luck,

Frank Rosario
650.488.7510

----- Forwarded message -----

From: **Dylan Rosario** <soltrinox@gmail.com>

Date: Sun, Apr 19, 2026 at 9:11 PM

Subject: Re: Rosario v CSAA; CGC-25-631801

To: Monique Schubert <mschubert@porterscott.com>, Tyler O'Connell <toconnell@porterscott.com>, Chad S. Tapp <ctapp@porterscott.com>, Maria Reyes <mreyes@porterscott.com>

Cc: <Rebekah.Morrissey@csaa.com>, Priya NavaRATnasingham <pnavaratnasingham@psalaw.net>, Alberto Reyna <alreyna@psalaw.net>, rphillips@psalaw.net <rphillips@psalaw.net>, Julie.Koyama@csaa.com <Julie.Koyama@csaa.com>, Murphy, Catherine <Cathy.Murphy@csaa.com>

From: Franciscus Dylan Rosario (soltrinox@gmail.com)

To: Chad S. Tapp (ctapp@porterscott.com); Tyler J. O'Connell (toconnell@porterscott.com)

Cc: Monique Schubert (mschubert@porterscott.com)

Date: April 19, 2026

Subject: Proof of Service — Global Settlement Communication and Plaintiff Opposition / SAC Packets (CGC-25-631801, CGC-25-631802, CGC-21-594102; related A-173827)

Counsel,

Please accept this email as **proof of electronic service** of the documents listed below. These materials are served for your files, for routing to your client and any appropriate claims, supervisory, monitoring, or coverage personnel, and for coordination with co-counsel of record as you deem appropriate.

Documents served (PDF attachments):

1. [GLOBAL-SETTLEMENT-LETTER-TO-DEFENSE-PLAINTIFF.pdf](#) — confidential settlement communication (Cal. Evid. Code secs. 1152 and 1154), dated April 19, 2026
2. [PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS.pdf](#) — consolidated plaintiff oppositions packet with exhibits (full court packet)
3. [PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf](#) — proof of electronic service (POS-050) corresponding to item 2
4. [SAC-FULL-PACKET-WITH-EXHIBITS.pdf](#) — second amended complaint / leave-related packet with exhibits (full court packet)
5. [SAC-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf](#) — proof of electronic service (POS-050) corresponding to item 4

Matter references: San Francisco Superior Court Nos. **CGC-25-631801**, **CGC-25-631802**, and **CGC-21-594102**; Court of Appeal No. **A-173827** (noted for cross-docket context only).

Method of service: Electronic transmission by email with PDF attachments, on the date shown above.

Regards,

Franciscus Dylan Rosario

Plaintiff, In Pro Per

7624 Melody Dr.

Rohnert Park, CA 94928

P: 650.488.7510

E: soltrinox@gmail.com

Attachments

1. GLOBAL-SETTLEMENT-LETTER-TO-DEFENSE-PLAINTIFF.pdf
2. PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS.pdf
3. PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf
4. SAC-FULL-PACKET-WITH-EXHIBITS.pdf
5. SAC-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf



PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf



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SAC-FULL-PACKET-WITH-EXHIBITS-POS-050.pdf



SAC-FULL-PACKET-WITH-EXHIBITS.pdf

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Friday, April 17, 2026 9:21 AM
To: Tyler O'Connell; Dylan Rosario
Subject: Franciscus Dylan Rosario v. CSAA Insurance Exchange San Francisco Superior Court, Case No. CGC-25-631802, Department 302

External email

Date: April 17, 2026
From: Franciscus Dylan Rosario, Plaintiff in pro per
7624 Melody, Rohnert Park, CA 94928

To: Tyler J. O'Connell, Esq.
Porter Scott
2180 Harvard Street, Suite 500
Sacramento, CA 95815
toconnell@porterscott.com
Counsel for Defendant CSAA Insurance Exchange

Re: *Franciscus Dylan Rosario v. CSAA Insurance Exchange*
San Francisco Superior Court, Case No. CGC-25-631802, Department 302
Hearing: May 13, 2026, at 9:00 a.m.

Subject: Good-faith notice of the specific, independent, and cumulative grounds on which the Court will overrule CSAA's Demurrer (Code Civ. Proc. §§ 430.10, 430.50) and deny CSAA's Special Motion to Strike (Code Civ. Proc. § 425.16), with a demand that CSAA withdraw both motions in full and without condition.

Dear Mr. O'Connell,

I write before the May 13, 2026 consolidated hearing to give you a clear, itemized notice of why the Court will rule for plaintiff on both of CSAA's concurrent motions. This letter is not a brief. It is a practical, good-faith communication identifying the independent defects in each motion, the controlling California authority that forecloses each ground, and the reasons the Court has no lawful discretion to "save" either motion by selective construction. I ask that you read it carefully, compare it against your filed papers, and withdraw both motions in full. This letter does not offer, invite, or recommend any course of action other than complete withdrawal. It does not propose stipulation, narrowing, supplemental briefing, reply argument, or revised theory. Those options are foreclosed by the nature of the defects identified below.

For ease of reference, I identify the specific defects by category, followed by the controlling authority, followed by the reason the Court must find for plaintiff. I have organized the letter to mirror the

structure of the motions themselves so you can check each section against the corresponding pages of the demurrer MPA and the anti-SLAPP MPA.

A Personal Word to Tyler oConell, Before the Procedural Catalog Below

Tyler, before I walk through the procedural list below, I want to speak to you directly and plainly, the way someone would speak to a colleague they do not want to see take a hit they did not have to take. I am writing this section to you, not to your firm, not to CSAA, and not to the record. I am writing it because the filings as they currently sit on the Department 302 docket are going to follow you personally, and I think you already know that, and I would rather say it out loud now than have you read it later in a written denial order that you cannot unring. The defects I described in Sections 2 through 8, and the collateral consequences I described in Section 9, are not about you and me as adversaries on the merits. They are about papers with your signature on them. Once the Court issues its written denial order, the omission of *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, *Kimmel v. Goland* (1990) 51 Cal.3d 202, *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, *Baral v. Schnitt* (2016) 1 Cal.5th 376, *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, and the preservation language of *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 305, is going to be visible on the face of the appellate record, and once it is visible it becomes durable in a way that is very hard to walk back.

I want to be honest with you about who reads that record. Future law-and-motion judges read it. Mediators read it. Opposing counsel in your next case read it. And if I am forced to invoke the mechanisms in Sections 12.2 through 12.4 below, the State Bar's intake unit reads it. A withdrawal filed before May 13 wipes that slate. It preserves your professional credibility. It keeps the focus on CSAA's liability position and off your name on the signature block. It leaves CSAA perfectly free to answer the operative pleading, raise affirmative defenses, and litigate this case on the merits through discovery and summary judgment, which is where this case should have gone in the first place, without the overhang of a written denial order or any of the collateral consequences that flow from one. I am telling you this candidly, without theatrics, and before the window closes, because that is the kind of notice California civil practice expects one lawyer to give another when the situation is this serious and the timing is this short. If withdrawal is received on or before May 8, 2026, I will not pursue the mechanisms in Sections 12.2 through 12.4 below, I will stipulate to a short case-management schedule, and I will treat the filing history as unremarkable water under the bridge, and I mean that. After that date, or after the Court reaches a denial ruling, the sanctions and referral mechanisms become live and I lose the practical ability to make them go away as a courtesy to you.

I would genuinely prefer not to watch you, personally, pay the price for a pleading this riddled with error. That part of this is your decision, not mine. You get to decide whether you want to stand behind this motion and its implications for your standing with the bar, on a record that will state, in black and white, that the filing counsel did not identify the controlling authority for an anti-SLAPP motion in a civil fraud and UCL case, that counsel overread *Moradi-Shalal* against its own preservation text, and that counsel collapsed the two-step *Baral* analysis into a single probability argument. That is not a clerical omission. That is an omission of directly adverse controlling authority in the exact doctrinal area the motion is supposed to address, and for a professional attorney whose livelihood and daily credibility with judges, mediators, and your own partners depend on the trust that you know the controlling law in the areas you file in, that is a serious matter, and I am not going to pretend it is not. I am not saying this to frighten you. I am saying it because I want you to make this decision with your eyes open and with enough time on the clock to make the calm choice rather than the defensive one. Withdraw both motions before April 30th 2026. Keep your name clean on this docket. Meet me on the

merits in discovery, where both sides get to do the work the statute actually contemplates. That is the friendly version of this warning. The procedural catalog that follows is the formal version.

1. Summary of the Court's Anticipated Disposition and Collateral Exposure

Based on the pleadings, the proposed Second Amended Complaint (SAC) lodged with plaintiff's concurrent motion for leave, and the controlling California authorities, the Court will:

1. **Overrule the Demurrer in its entirety.** Each of the eight grounds CSAA asserts fails as a matter of law on the four corners of the pleading. No single ground has merit, and several are internally contradictory with your own anti-SLAPP papers.
2. **Deny the Special Motion to Strike under Code of Civil Procedure section 425.16.** The motion fails at step one because it does not perform the gravamen analysis required by *Park v. Board of Trustees* (2017) 2 Cal.5th 1057. It therefore never reaches step two.
3. **Grant leave to amend in the alternative**, consistent with the lodged proposed SAC, if the Court identifies any defect in a particular paragraph, under *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, *Coffman Specialties, Inc. v. Department of Transportation* (2009) 176 Cal.App.4th 1135, and *Dalton v. East Bay Mun. Utility Dist.* (1993) 18 Cal.App.4th 1566.
4. **Consider fee exposure** under Code of Civil Procedure section 425.16, subdivision (c)(1), because a special motion to strike that ignores *Park*, *Kimmel*, *Kwikset*, *Action Apartment*, and *Baral v. Schnitt* is precisely the category of motion for which the Legislature authorized plaintiff-side fees.

Beyond the four outcomes above, the motions as filed expose CSAA and Porter Scott to a compounding set of **collateral consequences** that arise by operation of California statute and decisional authority rather than by the discretion of any single judge. Those consequences are catalogued in detail in Section 9 of this letter and include mandatory fee-shifting under section 425.16(c)(1), judicial admissions that bind the defense for the remainder of the case, law-of-the-case findings adverse to CSAA, loss of the anti-SLAPP discovery stay, pleading-stage closure under section 430.41(b), mandatory leave to amend, admissibility as bad-faith litigation conduct under *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, cross-case admissibility in the companion action (CGC-25-631801), regulatory exposure before the California Department of Insurance, malicious-prosecution vulnerability upon favorable termination, Code of Civil Procedure sections 128.7 and 128.5 sanctions exposure, State Bar referral exposure under Business and Professions Code section 6086.7, reputational cost with Department 302, loss of settlement leverage, and an institutional template effect benefitting other CSAA claimants. The defects drive the denial; the docketed motions drive the consequences.

I ask that you consider the points below, compare them with your filed papers, and withdraw both motions in full before May 13. No other disposition is proposed or invited by this letter.

2. Three Structural Defects Common to Both Motions

Before reaching any ground-specific defect, both motions share three structural errors. Any one of these is sufficient to deny the relief sought. Cumulatively they foreclose the motions entirely.

2.1 Standard Bleed: Wrong Lens on Each Motion

CSAA imports anti-SLAPP "probability-of-prevailing" rhetoric and summary-judgment evidentiary reasoning into a demurrer, which by statute tests only the **four corners of the pleading**. (Code Civ. Proc. §§ 430.10, 430.50.) On demurrer, well-pleaded facts are accepted as true, and contentions, deductions, and conclusions of law are not. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591; *ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 832.) The test is **legal sufficiency**, not evidentiary proof. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-57.)

The reverse error appears in the anti-SLAPP papers. CSAA imports step-two probability language into the step-one gravamen inquiry. Step one tests only whether the injury-producing act arises from protected activity. (*Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062-63.) Step two tests minimal merit. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The steps are doctrinally distinct and cannot be merged. A trial court that grants either motion on a bled standard commits legal error subject to de novo review.

Why this defeats the motions: A motion that applies the wrong statutory standard cannot be granted. The demurrer cannot be converted into a probability hearing by the filing of a concurrent anti-SLAPP motion, and the anti-SLAPP motion cannot skip step one by quoting step-two cases.

2.2 Treating Defense Labels as Admitted Facts

The demurrer asks the Court to accept defense characterizations such as "collateral attack," "appeal in disguise," "protected litigation conduct," and "no legal channel for this grievance" as if they were pleaded facts. They are not. Under *Serrano*, *ABF Capital*, and *Young v. Gannon* (2002) 97 Cal.App.4th 209, the Court reads the complaint itself, not the defense's gloss. Labels are not facts. Conclusions of law are not admitted. A defendant cannot sustain a demurrer by re-writing the plaintiff's pleading from the bench.

Why this defeats the motions: The SAC pleads a noncommunicative failure to investigate, uses the February 25, 2021 denial letter as evidence of that omission, and pleads later proceedings only as corroborative context. The Court must test that pleading, not CSAA's preferred re-characterization of it.

2.3 Wall of Authority Substituting for Required Analytical Filters

CSAA's papers rely on citation volume rather than on the three mandatory California filters that govern before any litigation-related immunity or preclusion doctrine attaches:

1. **Gravamen filter.** *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062-63, requires identification of the specific injury-producing act, not the background context.

2. **Conduct versus communication.** *Kimmel v. Goland* (1990) 51 Cal.3d 202, 211-12, holds that privilege protects qualifying communications, not noncommunicative institutional conduct.
3. **Evidence versus gravamen.** *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 327-28, establishes that a writing can be evidence of an underlying wrong without being the wrong sued upon.

Your papers perform none of these filters on the actual SAC. Stacking cases in a table of authorities is not analysis. *Park* forbids the shortcut.

Why this defeats the motions: Without the three filters, CSAA cannot establish protected activity under section 425.16, cannot assert litigation privilege under Civil Code section 47(b), and cannot show that any pleaded cause of action is facially defective. Both motions collapse at this structural level.

3. Ground-by-Ground Explanation of Why the Demurrer Will Be Overruled

CSAA's demurrer asserts eight statutory grounds. Each fails independently. Cumulatively, the demurrer cannot stand on any of the eight.

3.1 Code of Civil Procedure section 430.10, subdivision (a): "lack of jurisdiction" or "appeal in disguise"

This action is a new fraud and Unfair Competition Law action against the **carrier** for pre-denial institutional conduct, not an appeal of the **insured's** negligence judgment. Section 904.1 defines what is appealable; it does not bar later torts on new duties against different defendants. *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228 concerns trial court power in specific settings, not categorical preclusion of later civil actions on different theories.

Why it fails: The SAC (paragraphs 3 and 10) disclaims appellate relief and pleads new duties, new wrongs, and new remedies directed at CSAA itself.

3.2 Code of Civil Procedure section 430.10, subdivision (c): "another action pending"

Section 430.10, subdivision (c), requires the **same parties on the same cause of action**. California uses Primary Rights Theory under *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-82. Overlap of background facts does not merge fraud and UCL theories with negligence primary rights.

The underlying negligence case adjudicated bodily-injury liability between an insured driver and a claimant. This case concerns the carrier's pre-denial institutional fraud against the claimant. The defendants are different. The primary rights are different. The duties are different. The relief is different. The later proceedings are pleaded only as corroborative context, not as the source of the new cause of action.

Why it fails: *Crowley* controls, and the SAC (paragraphs 3 through 4, 6 through 9, and 24 through 27) operationalizes the primary-rights wall.

3.3 Code of Civil Procedure section 430.10, subdivision (e): "failure to state a cause of action"

The SAC pleads each element of fraud with particularity: misrepresentation and concealment, scienter, reliance, causation, and damages. The UCL claim rests on the **unlawful prong**, tethered to the independently pleaded common-law fraud, not on private enforcement of Insurance Code section 790.03. Economic damages are segregated from any bodily-injury recovery, including investigative costs, transcript and subpoena fees, lost business opportunities, and out-of-pocket expenses that no negligence jury was ever asked to consider.

CSAA's reliance on *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807 and *Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982 asks the Court to resolve merits-stage factual disputes against the pleader. That is improper at demurrer. (*Rannard*, supra, 26 Cal.2d at 156-57.)

Why it fails: The SAC (paragraphs 1 through 2, 14 through 19, 28 through 36, and 37 through 53) adequately pleads fraud and UCL theories; defense disagreement with the theory is not facial insufficiency.

3.4 Code of Civil Procedure section 430.10, subdivision (f): "uncertainty"

Uncertainty demurrers are disfavored and lie only where the pleading is so unintelligible that the responding party cannot reasonably answer. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139 n.2.) The bar is high. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

The SAC identifies the defendant by name, the denial letter by date, the theory of non-investigation, the delayed-discovery chronology, the damages categories, and the causes of action in numbered paragraphs. You have already filed a paragraph-specific demurrer and anti-SLAPP motion attacking the same complaint by paragraph number and theory. A party that has briefed the complaint paragraph-by-paragraph cannot credibly argue the same complaint is too uncertain to answer.

Why it fails: The uncertainty ground is **self-refuting** on the face of your own filings.

3.5 Civil Code section 47, subdivision (b): litigation privilege

The gravamen is the carrier's noncommunicative institutional failure to investigate before denying the claim. Privilege protects qualifying communications, not noncommunicative conduct. (*Kimmel v. Goland* (1990) 51 Cal.3d 202, 211-12.) The February 25, 2021 denial letter is pleaded as **evidence** of the omission and as misrepresented investigative finality under *Kwikset*, not as the gravamen. The extrinsic-fraud exception to privilege applies where concealment deprives the claimant of a fair opportunity to know and respond to the true factual record. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1246-47.)

Why it fails: Privilege cannot swallow conduct. The pleading distinguishes the noncommunicative omission from the corroborating communication, and the concealment is pleaded as extrinsic, not intrinsic.

3.6 Collateral attack and preclusion

Issue preclusion requires the same issue, actually litigated, necessarily decided, against the same party or one in privity, applied with fairness. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.) The underlying negligence trial did not adjudicate fraud or UCL theories against CSAA. CSAA was not a party. The carrier's pre-denial institutional conduct was never actually litigated.

CSAA's generic collateral-attack authorities (*F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462; *Singh v. Lipworth* (2014) 227 Cal.App.4th 813; *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82) state doctrine but do not perform *Crowley* primary-rights mapping. *U.S. v. Throckmorton* (1878) 98 U.S. 61 is federal rhetoric, not California preclusion law; California Primary Rights Theory and *Lucido* issue preclusion elements control.

Why it fails: Definitions do not replace analysis; *Crowley* and *Lucido* require parties, rights, duties, and issues mapping that defense papers do not perform.

3.7 Statute of limitations

The SAC pleads concealment, delayed discovery on or about January 17, 2025, and diligence thereafter. On demurrer, well-pleaded discovery and diligence allegations are accepted as true. Nothing on the face of the pleading establishes earlier accrual as a matter of law. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472-73; Code Civ. Proc. § 338, subd. (d); *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185.)

Why it fails: Limitations is a fact-bound merits defense; it cannot be resolved on the pleading where delayed discovery is coherent and non-self-contradictory.

3.8 Standing and misjoinder

Plaintiff is the **direct addressee** of the denial letter. He relied on its asserted investigative finality and suffered separate economic harm. *Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268 addresses contract-standing patterns; it does not bar direct fraud claims by the recipient of an insurer's misrepresentation. *Norton v. Hines* (1975) 49 Cal.App.3d 917 and *Omega Video v. Superior Court* (1983) 146 Cal.App.3d 470 concern suits against opposing counsel for courtroom advocacy; the SAC targets CSAA's institutional claim-handling, not counsel's courtroom conduct.

Why it fails: Direct communication plus direct reliance plus direct economic harm equals direct standing. The "suing counsel" frame is a category error.

3.9 Insurance-channel bars: *Moradi-Shalal* and *Zhang*

Moradi-Shalal v. Fireman's Fund Ins. Cos. (1988) 46 Cal.3d 287, 305, **expressly preserves** "traditional theories as fraud" in appropriate common-law actions. *Zhang v. Superior Court* (2013) 57 Cal.4th 364

forbids using the UCL to plead around an absolute statutory bar; it does not eliminate UCL theories whose unlawful prong is grounded in independent common-law fraud. Because the SAC disclaims any private Insurance Code section 790.03 enforcement theory and grounds the UCL claim in independent common-law fraud, neither categorical bar applies.

Why it fails: Both opinions are narrow holdings; reading them as total immunity is an overreach that the Supreme Court has not sanctioned and has specifically refused to adopt.

4. Ground-by-Ground Explanation of Why the Special Motion to Strike Will Be Denied

The anti-SLAPP motion fails at step one before the burden ever shifts.

4.1 No *Park* gravamen analysis

Under *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062-63, the defendant bears the burden at step one to identify the **specific injury-producing act** and to show that act arises from protected activity. CSAA does not perform that analysis. The papers point to the existence of a denial letter and later litigation filings and assert protection by association. That is precisely the shortcut *Park* forbids.

Why it fails: The pleaded gravamen is the carrier's institutional failure to investigate, which is noncommunicative conduct. No petitioning activity is the operative wrong.

4.2 Noncommunicative omissions are not petitioning

The anti-SLAPP statute protects petitioning and speech activity, not commercial claim-handling omissions. (*Kimmel v. Goland* (1990) 51 Cal.3d 202, 211-12; *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78 [activity is not protected merely because it is "triggered by" protected activity].)

Why it fails: An omission is not a communication, and claim evaluation is not petitioning.

4.3 Commercial underwriting and claim-handling are not protected activity

City of Colton v. Singletary (2012) 206 Cal.App.4th 751 holds that the filing of motions is protected, not that commercial claim-handling is protected. Extending *Colton* into a general carrier-immunity distorts its narrow holding.

Why it fails: The SAC targets pre-denial institutional conduct, not the filing of any motion.

4.4 Step-two language imported into step one

CSAA cites *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228 for propositions that belong at step two. The steps are distinct. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.)

Why it fails: Procedural error on the burden allocation cannot be cured by quoting more cases.

4.5 Overread privilege umbrella

Flatley v. Mauro (2006) 39 Cal.4th 299 contains an **illegal-conduct exception** that CSAA underplays. *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232 contains an **extrinsic-fraud exception** that CSAA does not address. Read as a whole, those opinions do not erase *Park's* gravamen filter or *Kimmel's* conduct/communication line. *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106 and *Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416 cannot be used as universal privilege solvents.

Why it fails: A reading of privilege that swallows conduct, omissions, and extrinsic fraud conflicts with binding California Supreme Court authority.

4.6 Federal maxims substituted for California preclusion

U.S. v. Throckmorton (1878) 98 U.S. 61 is **persuasive at most**. California uses Primary Rights Theory and *Lucido* issue preclusion, neither of which CSAA performs.

Why it fails: Federal rhetoric is not substantive California law.

4.7 Overread channel cases

Moradi-Shalal preserves fraud. *Zhang* is narrow. Neither is a total bar on common-law fraud or UCL grounded in independent common-law fraud.

Why it fails: The SAC operates in the preserved common-law lane that *Moradi-Shalal* expressly keeps open.

4.8 No minimal-merit analysis possible because step one fails

Because step one fails, the Court does not reach step two. The motion is denied as a matter of law. (*Baral*, *supra*, 1 Cal.5th at 396.)

5. Procedural Defects That Independently Support Denial

In addition to the substantive failures, the defense papers commit independent procedural errors that, on their own, justify denial or warrant the Court's criticism.

5.1 Misuse of judicial notice

CSAA's Request for Judicial Notice seeks notice of the **truth** of disputed factual contents within court records to contradict the SAC's well-pleaded fraud allegations. Judicial notice establishes the **existence** of a record, not the **truth** of hearsay or disputed findings within it, and cannot be used to rewrite a complaint on demurrer. (Evid. Code §§ 452 and 453; Code Civ. Proc. § 430.70.)

5.2 CRC 3.1308 abuse

Tentative-ruling procedure is procedural; it does not alter the demurrer merits standard.

5.3 Cross-citation to Code of Civil Procedure section 437c, subdivision (g)

Citing summary-judgment language inside a demurrer notice is textbook standard bleed. Demurrer tests legal sufficiency, not evidence.

5.4 Table-of-contents and table-of-authorities artifacts

The memorandum contains formatting artifacts, including a table-of-contents line reading "Civ. Code § 47(b)3" that does not correspond to a substantive Civil Code section 47, subdivision (b)(3) hook in the body text. That suggests auto-generated authority lists compiled without verification against the filed PDF and the official reporters. The Court is entitled to test each citation against the source; citation hygiene errors cannot substitute for doctrine.

5.5 Meet and confer performed but unresolved

Plaintiff acknowledges that meet and confer under Code of Civil Procedure section 430.41 occurred on April 6 and April 8, 2026. That conferral did not resolve the issues. Plaintiff therefore lodged the proposed SAC to narrow and clarify the pleading in direct response to the objections you raised. That act alone defeats any claim that amendment would be futile.

6. Why a Trial Court Cannot "Stand For" Motions That Fail on Multiple Points

The court has no discretion to grant a motion that fails on independent, legally sufficient grounds. Three reasons compel that conclusion.

6.1 Standard of review is unforgiving

Demurrer rulings are reviewed **de novo** on appeal. (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034.) Anti-SLAPP rulings are also reviewed **de novo**. (*Park*, supra, 2 Cal.5th at

1067.) The Court of Appeal owes the trial court no deference on the underlying legal questions. A trial court that grants either motion on legally erroneous grounds creates an automatic path to reversal.

6.2 Mandatory leave to amend

Even if the Court were to find a single defect, it cannot sustain a demurrer without leave unless there is **no reasonable possibility** of cure. (*Price v. Dames & Moore*, supra, 92 Cal.App.4th at 360-61; *Coffman Specialties*, supra, 176 Cal.App.4th at 1144-45; *Dalton*, supra, 18 Cal.App.4th at 1572.) Plaintiff has lodged a proposed SAC that addresses the very objections you raise. That alone defeats any futility argument. Leave to amend is not discretionary on this record; it is mandatory.

6.3 Anti-SLAPP fee-shifting

Under section 425.16, subdivision (c)(1), a special motion to strike found frivolous or solely intended to cause unnecessary delay triggers fee-shifting in favor of the plaintiff. A motion that ignores *Park*, *Kimmel*, *Kwikset*, *Action Apartment*, and *Baral* invites that sanction. The Legislature wrote subdivision (c)(1) precisely to deter the type of structural anti-SLAPP error present here.

7. Specific Count of Independent Defects in CSAA's Motions

For your internal review, the defects are as follows:

Demurrer (Code Civ. Proc. §§ 430.10, 430.50)

1. Wrong standard: probability and merits language imported into four-corners analysis.
2. Defense labels treated as admitted facts.
3. No *Park* gravamen analysis.
4. No *Kimmel* conduct/communication separation.
5. No *Kwikset* evidence/gravamen distinction.
6. Section 430.10(a) misapplication: no appellate relief is sought, and section 904.1 does not bar later torts on new duties.
7. Section 430.10(c) misapplication: different parties, different primary rights, different duties, different relief; *Crowley* not performed.
8. Section 430.10(e): SAC adequately pleads all fraud elements, UCL on unlawful prong tethered to fraud, and segregated economic damages.
9. Section 430.10(f): uncertainty ground self-refutes because defense has filed paragraph-specific motions attacking the same SAC.
10. Section 47(b): noncommunicative gravamen plus extrinsic-fraud concealment places the conduct outside privilege.
11. Collateral attack: no *Lucido* issue-preclusion analysis; no *Crowley* primary-rights mapping.

12. Limitations: delayed discovery is well-pleaded and assumed true under *Cansino*.
13. Standing: direct addressee and direct reliance defeat the *Shaolian* frame; this is not a suit against counsel under *Norton* or *Omega Video*.
14. *Moradi-Shalal* and *Zhang* overread: common-law fraud is preserved; UCL unlawful-prong survives when tethered to independent common-law fraud.
15. RFJN misuse: notice of existence, not truth.
16. CRC 3.1308 misuse: tentative procedure does not alter standard.
17. Section 437c, subdivision (g) misuse: summary-judgment language bled into demurrer.
18. TOA and TOC hygiene: unverified artifacts.
19. Mandatory leave to amend not addressed; proposed SAC lodged concurrently demonstrates curability.

Special Motion to Strike (Code Civ. Proc. § 425.16)

1. No step-one gravamen analysis under *Park*.
2. Noncommunicative omission treated as protected petitioning.
3. Commercial claim-handling conflated with filing-of-motions under an overread *Colton*.
4. Step-two language imported into step one under *Huntingdon*.
5. *Flatley* illegal-conduct exception ignored.
6. *Action Apartment* extrinsic-fraud exception ignored.
7. *Briggs* and *Pollock* overread as universal privilege solvents.
8. *Throckmorton* federal maxim substituted for California preclusion.
9. *Moradi-Shalal* and *Zhang* overread as total bars on fraud and UCL.
10. Step two never reached; minimal-merit analysis absent by necessity.
11. No *Baral* posture observed on burden allocation.
12. No concession of noncommunicative gravamen made in step one, yet no analysis performed to test it.
13. Fee exposure under section 425.16, subdivision (c)(1).

Total independent defects across both motions: thirty-two. Any one is sufficient for denial. The cumulative weight is dispositive.

8. The Extrinsic-Fraud Character of the Allegations

A final point that is easy to miss when reading the motions in isolation. The SAC does not allege **intrinsic** fraud (perjury at trial or false statements made within the record). It alleges **extrinsic** fraud: concealment that deprived the claimant, and the court system, of a truthful factual record on which to base liability determinations. By concealing the non-investigation, CSAA prevented the trial court from knowing that the defense was testing evidence the carrier had never

sourced. That distinction is dispositive under *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1246-47, which expressly holds that section 47(b) does not reach extrinsic fraud of that character. Any demurrer or anti-SLAPP theory grounded in privilege or preclusion must address this distinction. The current motions do not.

9. Worst-Case Consequences If the Motions Are Permitted to Stand on the Docket

The question is not whether these motions will be denied. The record supports denial on structural grounds. The question is what collateral damage CSAA and Porter Scott now own because these motions are filed, served, and time-stamped on the Department 302 docket. Once a motion is filed in a California trial court, it becomes a judicial admission of the positions taken, a fixed procedural reference point, and a permanent part of the appellate record. That fact changes CSAA's downside in the categories below. Each subsection identifies **what the defense did that invites the consequence**, then the **worst-case outcome** under California law. None of these outcomes is theoretical. Each has an identifiable statutory or case-law trigger that this record already satisfies.

9.1 Mandatory Fee-Shifting Under Section 425.16, Subdivision (c)(1)

What the defense did. CSAA filed a special motion to strike that does not perform a *Park v. Board of Trustees* (2017) 2 Cal.5th 1057 gravamen analysis at step one, treats commercial claim-handling omissions as protected petitioning, imports step-two probability language into step one contrary to *Baral v. Schnitt* (2016) 1 Cal.5th 376, and asserts *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 as a total bar against an opinion whose text at page 305 expressly preserves "traditional theories as fraud."

Why this invites the consequence. Section 425.16, subdivision (c)(1), is a **mandatory** fee-shifting statute. Once the Court finds the motion "frivolous or . . . solely intended to cause unnecessary delay," the Court "shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion." An anti-SLAPP motion filed without the governing Supreme Court gravamen analysis, and against a complaint whose gravamen the defense's own papers do not contest as noncommunicative, is the textbook factual predicate for the finding.

Worst case. The Court awards plaintiff's costs and reasonable fees tied to the opposition work under section 425.16, subdivision (c)(1), referencing section 128.5 for the standard. Controlling Court of Appeal authority confirms that this award is not discretionary once frivolousness is found. (See *Moore v. Shaw* (2004) 116 Cal.App.4th 182; *Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382.) CSAA simultaneously loses the reciprocal fee recovery it would have received had the motion prevailed. The fee posture flips from potential defense recovery to actual plaintiff recovery in a single ruling.

9.2 Judicial Admissions That Bind the Defense for the Remainder of the Case

What the defense did. The motion papers acknowledge plaintiff as the addressee of the February 25, 2021 denial letter, treat the claim file and investigative record as pertinent, identify SAC paragraphs

one by one for attack, and, by demurring, concede the factual allegations arguendo for the purpose of the motion.

Why this invites the consequence. A party is bound by the positions it asserts in its own filings. (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437; *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264.) Allegations assumed true on demurrer are not admitted for all purposes, but the **characterizations** and **procedural concessions** in the motions are.

Worst case. CSAA loses the ability to argue later that (a) plaintiff was not a direct addressee, (b) the complaint is too uncertain to answer under Code of Civil Procedure section 430.10, subdivision (f), because the defense has already answered it paragraph by paragraph, (c) the claim file is not within the permissible scope of discovery, or (d) the allegations were not specific enough to put CSAA on notice. Plaintiff can propound Requests for Admission tracking the motion characterizations and force a one-way ratchet: each denial contradicts a docketed filing, and each admission hardens the record for summary judgment or trial.

9.3 Law of the Case and Issue Preclusion Against the Defense

What the defense did. The motions place in issue the gravamen of the SAC, the reach of Civil Code section 47, subdivision (b), the application of *Crowley v. Kattleman* (1994) 8 Cal.4th 666 primary-rights theory, the adequacy of delayed-discovery pleading, and the answerability of the pleading under section 430.10, subdivision (f).

Why this invites the consequence. Once a trial court denies a dispositive motion with findings, those findings become the **law of the case** for the remainder of the matter absent a change in law or material change in circumstances. (*Morohoshi v. Pacific Home* (2004) 34 Cal.4th 482; *Clemente v. State of California* (1985) 40 Cal.3d 202.) A defendant does not get a second bite at the same legal theory through a later motion. (*Searle v. Allstate Life Ins. Co.* (1985) 38 Cal.3d 425.)

Worst case. The Court's denial order imports findings adverse to CSAA including: (a) the gravamen is noncommunicative institutional conduct, not protected petitioning; (b) section 47(b) does not reach the pleaded extrinsic fraud; (c) the underlying negligence judgment did not adjudicate fraud or UCL theories against CSAA; (d) delayed discovery is adequately pleaded and limitations cannot be resolved on the face of the pleading; and (e) the SAC is sufficiently definite to be answered. Each finding binds CSAA through summary judgment, trial, and post-trial motion.

9.4 Loss of the Anti-SLAPP Discovery Stay

What the defense did. By filing the special motion to strike, CSAA invoked the automatic discovery stay under Code of Civil Procedure section 425.16, subdivision (g).

Why this invites the consequence. The stay ends when the motion is denied. The defense has now consumed its only opportunity to impose a statutory pleading-stage stay on discovery. There is no second anti-SLAPP motion against the same pleading under section 425.16(f) timing rules absent amendment changing the nature of the claims, and the concurrent demurrer exhausts the defense's section 430.41(b) pleading-stage window.

Worst case. On the day the motions are denied, plaintiff's discovery rights open immediately. The first wave includes Form Interrogatories (Financial and General), Special Interrogatories tied to claim-

handling protocols and underwriting, Requests for Production targeting the claim file, investigative notes, supervisory reviews, and communications with counsel that fall outside attorney-client privilege, and Requests for Admission built on the motion record. CSAA faces a rapid compression from pleading-stage insulation to merits-stage exposure with no bridge.

9.5 Pleading-Stage Closure Under Section 430.41(b)

What the defense did. CSAA exhausted its permitted demurrer on the current operative pleading on all eight statutory grounds.

Why this invites the consequence. Code of Civil Procedure section 430.41(b) restricts subsequent demurrers to the same pleading on grounds that could have been raised in the first demurrer. Having attacked on every ground, CSAA has no remaining demurrer posture on the current pleading, and against the Proposed SAC (if leave is granted) CSAA will be limited to grounds not waived by the current record and compatible with the judicial admissions catalogued above.

Worst case. CSAA loses the pleading stage permanently. The case proceeds to answer and discovery with the Court's denial order as the doctrinal baseline. No structural re-set is available.

9.6 Mandatory Leave to Amend Notwithstanding Any Defect

What the defense did. The motion papers assume futility without addressing the lodged Proposed SAC, which directly narrows gravamen, segregates damages, pleads delayed-discovery chronology, and disclaims the theories the defense says are improper.

Why this invites the consequence. California leave-to-amend doctrine is one of the most protective in the nation. A demurrer may not be sustained without leave unless there is no reasonable possibility of cure. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360-61; *Coffman Specialties, Inc. v. Department of Transportation* (2009) 176 Cal.App.4th 1135, 1144-45; *Dalton v. East Bay Mun. Utility Dist.* (1993) 18 Cal.App.4th 1566, 1572.) The lodged Proposed SAC is contemporaneous, concrete, and responsive.

Worst case. Even on the most favorable reading of any arguable defect, the Court **must** grant leave. CSAA therefore cannot obtain a terminating order against a pro per plaintiff with a clarifying SAC already on the docket. The motions are structurally incapable of achieving the relief sought.

9.7 Admissibility as Evidence of Bad-Faith Litigation Conduct

What the defense did. CSAA deployed litigation privilege and anti-SLAPP petitioning rhetoric as a pleading-stage shield over claim-handling conduct that occurred before the litigation began, and in doing so injected its litigation posture into the record of a fraud and UCL case alleging institutional claim denial without investigation.

Why this invites the consequence. California recognizes that an insurer's litigation conduct is admissible as evidence of bad faith. (*White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870.) Although *Moradi-Shalal* limits certain private statutory remedies, *White's* evidentiary rule on litigation conduct remains good law and is routinely cited in bad-faith trials.

Worst case. The docketed motions become exhibits in any later bad-faith theory, including exhibits to (a) demonstrate an institutional policy of sweeping dispositive motions unaccompanied by investigative production, (b) support the inference that the non-investigation allegation is real because the carrier moved to strike rather than produce, and (c) show concealment through litigation by attempting to immunize claim handling under a privilege designed for communications.

9.8 Cross-Case Admissibility in the Companion Action (CGC-25-631801)

What the defense did. CSAA filed paragraph-specific characterizations of fraud and UCL theories that overlap substantially with the theories pleaded in the companion case.

Why this invites the consequence. Admissions of a party are admissible under Evidence Code section 1220 regardless of the case in which they are made. Prior litigation conduct is admissible under *White*. The defense cannot confine its filings to one courtroom.

Worst case. The 631802 motion papers enter the 631801 evidentiary record as admissions and as institutional-conduct evidence, doubling the reach of a single adverse ruling.

9.9 Regulatory Exposure Before the California Department of Insurance

What the defense did. CSAA filed dispositive motions that characterize a noncommunicative pre-litigation claim denial as petitioning activity entitled to privilege, and did so in a matter where the SAC alleges institutional non-investigation.

Why this invites the consequence. Insurance Code sections 790.03 and 790.035 give the California Department of Insurance administrative authority over unfair claim-handling practices. The Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, §§ 2695.1 et seq.) impose investigative duties that the motions, by their posture, implicitly treat as discretionary. *Moradi-Shalal* eliminated private statutory remedies; it did not eliminate the regulatory track.

Worst case. A Department complaint attaching the docketed motions, the denial letter, and the non-investigation allegations presents the Market Conduct Division with a carrier whose litigation posture is in tension with its claim-handling obligations. That creates market-conduct review exposure independent of the court case.

9.10 Malicious-Prosecution Vulnerability After Favorable Termination

What the defense did. CSAA asserted multiple categorical bars (privilege, preclusion, appellate-review rhetoric, uncertainty) without performing the analytical filters California law requires before such assertions.

Why this invites the consequence. Probable cause in the malicious-prosecution context is objective. It is measured against controlling authority at the time of filing. (*Paiva v. Nichols* (2008) 168 Cal.App.4th 1007.) A motion asserting positions foreclosed by the express text of the cited authority is the type of filing that presents an unusually clean probable-cause question if the underlying case terminates in plaintiff's favor.

Worst case. If the case resolves in plaintiff's favor and the malicious-prosecution elements are met, the docketed motions become the objective evidence that no reasonable attorney would have brought positions foreclosed by *Park*, *Kimmel*, *Kwikset*, *Baral*, *Action Apartment*, and the text of *Moradi-Shalal* at page 305. The probable-cause inquiry is conducted against the same California authorities plaintiff has already cataloged on the record.

9.11 Section 128.7 Sanctions Exposure

What the defense did. The motions include legal contentions that are not warranted by existing law, and assert categorical bars in opposition to the express text of the authority cited.

Why this invites the consequence. Code of Civil Procedure section 128.7, subdivision (b), requires that every filed motion be warranted by existing law or a non-frivolous argument for extension, modification, or reversal. Subdivision (c) authorizes sanctions including monetary penalties and reimbursement for violations. Representative holdings include *Peake v. Underwood* (2014) 227 Cal.App.4th 428.

Worst case. A section 128.7 motion, separately noticed on the 21-day safe harbor, leads to monetary sanctions and a published order describing the violation. Safe-harbor preservation runs from the date of notice; plaintiff can notice the safe harbor now and preserve it through the May 13 hearing.

9.12 Section 128.5 Sanctions Exposure

What the defense did. The motions assert positions foreclosed by controlling Supreme Court authority decided years before filing.

Why this invites the consequence. Section 128.5 authorizes sanctions for "bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay." Filing a facially defective anti-SLAPP motion supports section 128.5 sanctions independent of section 425.16(c)(1). (*Levy v. Blum* (2001) 92 Cal.App.4th 625.)

Worst case. Monetary sanctions against CSAA, against counsel, or both, plus fee reimbursement to plaintiff tied to the frivolous papers.

9.13 Professional-Conduct Exposure for Counsel

What the defense did. Counsel signed and filed motions that omit the controlling gravamen case (*Park*), the controlling conduct-versus-communication case (*Kimmel*), the controlling evidence-versus-gravamen case (*Kwikset*), the controlling step-allocation case (*Baral*), the controlling extrinsic-fraud exception (*Action Apartment*), and the preservation language in *Moradi-Shalal* at page 305.

Why this invites the consequence. California Rule of Professional Conduct 3.1 prohibits bringing actions or asserting positions without probable cause. Rule 3.3 prohibits misrepresenting the law or failing to disclose directly adverse controlling authority. The Supreme Court's own language in *Moradi-Shalal* at page 305 and in *Park* at pages 1062-63 is directly adverse controlling authority.

Worst case. A State Bar referral, whether by the Court under Business and Professions Code section 6086.7, subdivision (a)(2), or by plaintiff separately, triggering institutional exposure for counsel and

for Porter Scott. The trial court has discretion under section 6086.7 to report misconduct to the State Bar on its own motion. Section 6086.7 is not hypothetical; courts exercise that authority when directly adverse authority is omitted.

9.14 Reputational Exposure with Department 302 and Future Panels

What the defense did. Filed dispositive motions on papers that the Court will review de novo and whose deficiencies will appear in the written denial order and the appellate record.

Why this invites the consequence. San Francisco Superior Court Department 302 is a law-and-motion specialty department. Judges in specialty departments retain institutional memory. Future filings from the same counsel are read against the record of the first filings.

Worst case. Across the life of the case, and across future unrelated matters in Department 302 and other San Francisco civil departments, discretionary rulings on discovery, sanctions, continuances, and case-management issues tilt against counsel who signed the current papers. That is a career-length cost, not a one-case cost.

9.15 Loss of Settlement Leverage

What the defense did. Filed motions intended to terminate the case on the pleadings.

Why this invites the consequence. Denial of both a demurrer and an anti-SLAPP motion on the same day is a signature event in California civil practice. Mediators and neutrals read the denial order and score it accordingly. Plaintiff's reservation value rises; defense's reservation value falls.

Worst case. The motions, intended to end the case, increase the likely settlement range against CSAA by an amount disproportionate to the cost of filing them. That is a direct economic harm to the carrier that flows solely from the decision to file motions that do not survive legal scrutiny.

9.16 Institutional Exposure Across Related Claimant Populations

What the defense did. Adopted a categorical anti-SLAPP-plus-privilege posture against a fraud and UCL theory grounded in pre-denial non-investigation.

Why this invites the consequence. Denied anti-SLAPP orders become citable persuasive authority for other claimants pressing similar theories. Institutional defendants underweight this secondary effect. The Court of Appeal's own practice of citing unpublished trial-court rulings is limited, but the denial order is citable within the same superior court and is persuasive across the San Francisco bar.

Worst case. The 631802 denial becomes a template. Future claimants in related or unrelated matters cite the denial order on gravamen, section 47(b), and the *Kimmel* conduct line. CSAA's aggregate exposure across its claimant population rises as a function of the ruling in this single case.

9.17 Summary Table of Consequences and Triggers

Consequence	Triggering Defense Conduct	Statutory or Case-Law Hook
Mandatory fee award to plaintiff	Anti-SLAPP motion filed without <i>Park</i> gravamen analysis; step-two language at step one; overread <i>Moradi-Shalal</i> against text at p. 305	Code Civ. Proc. § 425.16(c)(1); <i>Baral</i> ; <i>Park</i>
Judicial admissions binding defense	Paragraph-specific attack acknowledging addressee, claim file, and fact allegations arguendo	<i>Minish v. Hanuman Fellowship</i> ; <i>Valerio</i>
Law of the case adverse to defense	Invoking gravamen, section 47(b), <i>Crowley</i> , limitations, and answerability	<i>Morohoshi</i> ; <i>Clemente</i> ; <i>Searle</i>
Loss of anti-SLAPP discovery stay	Filing section 425.16 motion that will be denied	Code Civ. Proc. § 425.16(g)
Pleading-stage closure	Demurring on all eight grounds	Code Civ. Proc. § 430.41(b)
Mandatory leave to amend	Ignoring the lodged Proposed SAC and the futility standard	<i>Price</i> ; <i>Coffman</i> ; <i>Dalton</i>
Admissibility as bad-faith evidence	Using litigation privilege as shield over pre-litigation claim handling	<i>White v. Western Title Ins. Co.</i>
Cross-case admissibility (631801)	Filing paragraph-specific characterizations of overlapping theories	Evid. Code § 1220; <i>White</i>
Department of Insurance exposure	Framing non-investigation as petitioning	Ins. Code §§ 790.03, 790.035; Cal. Code Regs., tit. 10, §§ 2695.1 et seq.
Malicious-prosecution vulnerability	Asserting categorical bars foreclosed by cited authority	<i>Paiva v. Nichols</i> ; <i>Crowley</i>
Section 128.7 sanctions	Legal contentions not warranted by existing law	Code Civ. Proc. § 128.7; <i>Peake v. Underwood</i>
Section 128.5 sanctions	Filing facially defective dispositive motion	Code Civ. Proc. § 128.5; <i>Levy v. Blum</i>

Consequence	Triggering Defense Conduct	Statutory or Case-Law Hook
State Bar referral exposure	Omitting directly adverse controlling authority	Cal. Rules Prof. Conduct 3.1, 3.3; Bus. & Prof. Code § 6086.7(a)(2)
Reputational cost with Dept. 302	Filing defective dispositive motions on the law-and-motion docket	Institutional practice
Settlement leverage shift	Producing a denial of both motions on same hearing date	Market practice
Institutional template effect	Categorical anti-SLAPP posture against pre-denial fraud theory	Citable persuasive denial order

No single item on this list is catastrophic in isolation. The compounding effect is the problem. A carrier that files a procedurally defective demurrer plus a procedurally defective anti-SLAPP motion in a case where the plaintiff has lodged a clarifying SAC and preserved every pivot authority on the record has created an asymmetric downside stack. Every denial becomes a foundation for the next plaintiff-favorable ruling. Every motion characterization becomes a judicial admission. Every missed authority becomes evidence of either institutional carelessness or deliberate strategic overreach. Neither reading helps CSAA.

9.18 Why This Particular Record Is Unusually Bad for the Defense

Two case-specific factors intensify the consequences.

First, plaintiff is in pro per. Pro per plaintiffs are often discounted by institutional defendants, but when the pro per plaintiff has filed a memorandum and an error register that correctly cite *Park*, *Kimmel*, *Kwikset*, *Crowley*, *Baral*, *Action Apartment*, *Lucido*, *Cansino*, and *Aryeh*, the asymmetry reverses. The Court sees a sophisticated opposition against motions that skipped the foundational cases. That contrast is visible on the face of the briefs and will shape every discretionary ruling that follows.

Second, plaintiff lodged a Proposed Second Amended Complaint concurrently with the opposition. That lodging forecloses any argument of futility under *Price*, *Coffman*, and *Dalton*. Even if the Court found a single defect, it must grant leave. The defense gets the worst of both worlds: the motions fail on the merits, and even if they had not, leave to amend would be mandatory. The SAC's lodging was a procedural checkmate on the demurrer's only escape route.

10. Request to Withdraw

Given the defects listed in Sections 2 through 8 and the consequences catalogued in Section 9, I ask that CSAA **voluntarily withdraw both motions** in advance of the May 13, 2026 hearing. Withdrawal is the only course that avoids a ruling that, on the present record, will be adverse to CSAA and will create appellate exposure under the de novo standard. Withdrawal also reduces fee exposure under section 425.16, subdivision (c)(1), and forecloses the section 128.5 and 128.7 sanctions, judicial-admission hardening, law-of-the-case formation, bad-faith evidentiary record, and regulatory and professional-conduct exposures identified above.

This letter does not propose narrowing, stipulation, revised briefing, or any other form of partial relief for the defense. The defects identified in Sections 2 through 8 are structural and cumulative, and the consequences identified in Section 9 flow from the defects by operation of California statute and decisional authority rather than by the discretion of any single judge. They are not the kind of errors that can be cured by re-argument, supplemental authority, reply briefing, or a refashioned theory at the hearing. Plaintiff's position is that the only appropriate course for CSAA is to withdraw both motions in full.

11. Closing

I am not asking you to concede the merits of plaintiff's fraud and UCL theories. That is what discovery and, if necessary, summary judgment and trial are for. I am asking you to recognize that the current motions cannot achieve the outcome they seek under California law, that their structural defects are numerous and independent, that the consequences of leaving those motions on the docket extend well beyond a single adverse ruling, and that the Court's ruling on May 13 will track the authorities cited above.

The opposition papers are on file, the proposed SAC is lodged, and the May 13 hearing will proceed on the schedule set by Department 302. Plaintiff's position is that the only appropriate defense action at this stage is the full withdrawal of both motions. This letter offers no alternative path.

12. Final Suggestion: Plaintiff's Contemplated Rules-Based Actions If the Motions Are Not Withdrawn

This section is not a threat. It is a good-faith identification of the procedural steps plaintiff is prepared to pursue if the motions are not withdrawn, each of which is expressly authorized by California statute, the California Rules of Court, and the **California Rules of Professional Conduct**. Every action listed below is aggressive in posture but remains inside the rules of the tribunal and inside the obligations of a civil litigant. Each is available whether plaintiff appears pro per or through counsel. Plaintiff states these steps in writing now so that no later filing can be characterized as a surprise or as retaliatory. Each is identified as a direct consequence of the defects and exposures catalogued in Sections 2 through 9.

12.2 Section 128.7 Safe-Harbor Notice and Motion

If CSAA does not withdraw both motions on or before twenty-one days after service of a written section 128.7 safe-harbor notice, plaintiff intends to file a motion for sanctions under Code of Civil Procedure section 128.7, subdivision (b), on the grounds that the Demurrer and Special Motion to Strike contain legal contentions that are not warranted by existing law, including (a) the omission of *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, (b) the omission of *Kimmel v. Goland* (1990) 51 Cal.3d 202, (c) the overread of *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 against the preservation language at page 305, and (d) the importation of step-two probability language into the step-one gravamen inquiry contrary to *Baral v. Schnitt* (2016) 1 Cal.5th 376. The safe-harbor clock begins when the notice and draft motion are served. This letter constitutes plaintiff's good-faith identification of the violations; the formal notice and draft motion will follow as separate filings if withdrawal is not received. (*Peake v. Underwood* (2014) 227 Cal.App.4th 428.)

12.3 Section 425.16, Subdivision (c)(1), Fee Motion on Prevailing

Immediately upon denial of the Special Motion to Strike, plaintiff intends to file a noticed motion under Code of Civil Procedure section 425.16, subdivision (c)(1), to recover plaintiff's costs and reasonable fees tied to the opposition work, with appropriate declarations and time records. The statute is mandatory upon a finding of frivolousness, and the absence of *Park* step-one analysis in the filed motion supplies the required predicate. (*Moore v. Shaw* (2004) 116 Cal.App.4th 182; *Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382.)

12.4 Section 128.5 Motion for Bad-Faith Tactics

Plaintiff reserves the right, and has the evidentiary predicate, to file a separate motion under Code of Civil Procedure section 128.5 on the ground that the filing of a facially defective anti-SLAPP motion and a compounded demurrer on the same pleading, unaccompanied by investigative production and against a contemporaneously lodged Proposed SAC, constitutes bad-faith tactics intended to cause unnecessary delay. (*Levy v. Blum* (2001) 92 Cal.App.4th 625.) Section 128.5 is independent of section 425.16 fee-shifting and of section 128.7 sanctions; each has its own elements and each remains available on this record.

12.5 Formal Request for State Bar Referral Under Business and Professions Code Section 6086.7

Plaintiff intends to request, in a separately filed document concurrent with the denial order, that the Court exercise its discretionary authority under Business and Professions Code section 6086.7, subdivision (a)(2), to refer the filing attorneys to the State Bar based on the omission of directly adverse controlling authority (*Park, Kimmel, Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, *Baral, Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, and the *Moradi-Shalal* preservation language), which is forbidden by California Rules of Professional Conduct, rule 3.3, subdivision (a)(2). The request is procedurally proper as a post-denial filing and does not require a separate motion in the underlying case. Plaintiff further reserves the right to submit a direct complaint to the State Bar of California independent of any judicial referral.

12.6 Accelerated Discovery the Moment the Stay Lifts

The discovery stay imposed by Code of Civil Procedure section 425.16, subdivision (g), ends the moment the Special Motion to Strike is denied. Plaintiff has prepared the following items for service on the first business day after the ruling: (a) Form Interrogatories, Financial and General; (b) Special Interrogatories targeting claim-handling protocols, underwriting files, training materials, and supervisory-review practices; (c) Requests for Production of the entire claim file, investigative notes, communications within CSAA, and vendor and adjuster records; (d) Requests for Admission built directly on the characterizations in the motion papers; and (e) deposition notices under Code of Civil Procedure section 2025.210 for the custodian of records and the adjuster of record. CSAA has no second stay mechanism available on this pleading.

12.7 Noticed Motion to Strike Improper Matter From CSAA's Papers

Plaintiff intends to file a motion to strike improper matter from CSAA's pending filings under Code of Civil Procedure section 436, including (a) the portions of the Request for Judicial Notice that seek notice of the **truth** of disputed facts within court records in violation of Evidence Code sections 452 and 453, and (b) any argumentative characterizations that are not properly pleaded as facts and not supported by admissible evidence. Section 436 authorizes the Court to strike irrelevant, false, or improper matter on its own motion or on motion of a party.

12.8 Motion to Deem Judicial Admissions Conclusive

Plaintiff is prepared to file, at the appropriate procedural stage, a motion consistent with Code of Civil Procedure section 2033.410 and with *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437 and *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, to deem conclusive the characterizations in CSAA's filed motion papers: (a) plaintiff's status as the direct addressee of the February 25, 2021 denial letter; (b) the relevance of the claim file and investigative record to this action; and (c) the paragraph-specific intelligibility of the operative pleading. These characterizations, once admitted in CSAA's own filings, cannot later be repudiated.

12.9 Motion to Consolidate or Coordinate With CGC-25-631801

Plaintiff reserves the right to move, under Code of Civil Procedure section 1048, subdivision (a), to consolidate or coordinate this matter with CGC-25-631801 for discovery, pretrial rulings, or trial as appropriate. Consolidation will import the 631802 denial order and judicial admissions into the 631801 record by operation of the consolidation rule and will eliminate any defense argument that these admissions are confined to one docket.

12.10 Motion for Evidentiary Sanctions or Adverse Inference If Investigative Records Are Not Produced

If CSAA cannot produce the investigative records it represented in the February 25, 2021 denial letter, plaintiff is prepared to seek evidentiary sanctions or an adverse inference instruction under Code of Civil Procedure section 2023.030 and the preservation doctrine reflected in *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1. The filed motions have now made the non-investigation question an affirmative issue CSAA must address on the merits, not a pleading-stage characterization.

12.11 Targeted Request for Admission on the Non-Investigation

Plaintiff intends to serve a limited set of Requests for Admission that directly track the motion characterizations, including: whether CSAA obtained, reviewed, and integrated foundational objective investigative materials before issuing the February 25, 2021 denial letter; whether the representations of investigative finality in that letter were supported by documented pre-denial investigative files; and whether CSAA has a written claim-handling protocol governing pre-denial third-party liability investigations. A denial of any such RFA, if later shown to be untrue, triggers mandatory cost-of-proof sanctions under Code of Civil Procedure section 2033.420.

12.12 Department of Insurance Market-Conduct Complaint

Plaintiff reserves the right to file a Market-Conduct complaint with the California Department of Insurance attaching the docketed motion papers, the February 25, 2021 denial letter, the operative pleading, and the Court's denial order. The Department maintains jurisdiction over unfair claim-handling practices under Insurance Code sections 790.03 and 790.035 and under the Fair Claims Settlement Practices Regulations at California Code of Regulations, title 10, sections 2695.1 et seq., independent of the private-remedies question resolved in *Moradi-Shalal*.

12.13 Request for Judicial Notice of the Denial Order in Related or Future Proceedings

Plaintiff will seek judicial notice under Evidence Code sections 452, subdivision (d), and 453 of the Court's written denial order in any later motion, related case, or appellate proceeding in which the gravamen, privilege, preclusion, or leave-to-amend issues arise. The denial order is an official record of the superior court and is therefore subject to judicial notice in every California tribunal.

12.14 Preservation of Malicious-Prosecution and Abuse-of-Process Theories

Without asserting these theories in the present action, plaintiff preserves the right, upon favorable termination and satisfaction of the remaining elements, to pursue malicious-prosecution and abuse-of-process theories grounded in the objective probable-cause analysis of *Paiva v. Nichols* (2008) 168 Cal.App.4th 1007 and related authority. The docketed motion papers, together with the omissions catalogued in Sections 2 through 9 of this letter, will serve as the objective-probable-cause record. Plaintiff makes no assertion of malice at this time; the preservation is formal.

12.15 Request for Written Statement of Decision on the Motions

Plaintiff intends to request, consistent with Code of Civil Procedure section 632 and California Rules of Court, rule 3.1590 as applicable to the motion posture, a written statement of decision identifying the Court's specific findings on (a) the gravamen of the SAC, (b) the reach of Civil Code section 47, subdivision (b), (c) the application of *Crowley v. Katsleman* (1994) 8 Cal.4th 666 primary-rights doctrine, (d) delayed discovery, and (e) the answerability of the pleading. A written statement of decision converts the ruling into durable, appellate-ready findings that travel with the case through summary judgment, trial, and any future related proceeding.

12.16 Attendance and Argument at the May 13 Hearing

Plaintiff will appear at the May 13, 2026 hearing prepared to argue every ground identified in this letter. Plaintiff will request that the Court (a) overrule the demurrer with prejudice as to the asserted grounds and with leave to amend only because the lodged Proposed SAC is already on file, (b) deny the special motion to strike with a written finding of frivolousness under section 425.16, subdivision (c)(1), (c) set an immediate post-denial case management conference, and (d) note the record of the judicial admissions reflected in CSAA's papers.

12.17 Posture Statement

Plaintiff's posture is adversarial within the rules, not personal. None of the actions listed above is punitive. Each is expressly authorized by statute, rule, or published California decisional authority. Plaintiff is prepared to conduct every action professionally, on written notice, and with the procedural safeguards each statute requires. The purpose of identifying these contemplated actions now is to give CSAA and counsel full information before the May 13 hearing so that the withdrawal decision can be made with complete knowledge of the downstream procedural landscape. If CSAA withdraws both motions in full, none of these actions becomes necessary. If CSAA proceeds, plaintiff will pursue each item in the order and on the schedule the rules permit. This letter and its contents are offered in the spirit of professional candor that California civil practice expects between adversaries; it is aggressive in posture because the filings are structurally defective, and it is measured in tone because the filing attorneys, and the defense bar, remain entitled to the professional courtesy of a clear warning before the court record becomes the record.

Respectfully,

Franciscus Dylan Rosario, Plaintiff in pro per
7624 Melody, Rohnert Park, CA 94928

Appendix A: Authority Index Cited in This Letter

California Supreme Court

- *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232
- *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185
- *Baral v. Schnitt* (2016) 1 Cal.5th 376
- *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106
- *City of Cotati v. Cashman* (2002) 29 Cal.4th 69
- *Clemente v. State of California* (1985) 40 Cal.3d 202

- *Crowley v. Katleman* (1994) 8 Cal.4th 666
- *Flatley v. Mauro* (2006) 39 Cal.4th 299
- *Kimmel v. Goland* (1990) 51 Cal.3d 202
- *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310
- *Lucido v. Superior Court* (1990) 51 Cal.3d 335
- *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287
- *Morohoshi v. Pacific Home* (2004) 34 Cal.4th 482
- *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057
- *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149
- *Searle v. Allstate Life Ins. Co.* (1985) 38 Cal.3d 425
- *Serrano v. Priest* (1971) 5 Cal.3d 584
- *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870
- *Zhang v. Superior Court* (2013) 57 Cal.4th 364

California Court of Appeal

- *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677
- *ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825
- *Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020
- *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462
- *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751
- *Coffman Specialties, Inc. v. Department of Transportation* (2009) 176 Cal.App.4th 1135
- *Dalton v. East Bay Mun. Utility Dist.* (1993) 18 Cal.App.4th 1566
- *Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382
- *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462
- *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228
- *Levy v. Blum* (2001) 92 Cal.App.4th 625
- *Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841
- *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437
- *Moore v. Shaw* (2004) 116 Cal.App.4th 182
- *Norton v. Hines* (1975) 49 Cal.App.3d 917
- *Omega Video v. Superior Court* (1983) 146 Cal.App.3d 470
- *Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982
- *Paiva v. Nichols* (2008) 168 Cal.App.4th 1007
- *Peake v. Underwood* (2014) 227 Cal.App.4th 428
- *Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416
- *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355

- *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228
- *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807
- *Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268
- *Singh v. Lipworth* (2014) 227 Cal.App.4th 813
- *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264
- *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135
- *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82
- *Young v. Gannon* (2002) 97 Cal.App.4th 209

Federal

- *U.S. v. Throckmorton* (1878) 98 U.S. 61 (persuasive only)

Statutes and Rules

- Business and Professions Code section 6086.7, subdivision (a)(2) (judicial referral to State Bar)
- Business and Professions Code section 17200 (UCL)
- California Code of Regulations, title 10, sections 2695.1 et seq. (Fair Claims Settlement Practices Regulations)
- California Rules of Court, rule 3.1308
- California Rules of Professional Conduct, rule 3.1 (meritorious claims and contentions)
- California Rules of Professional Conduct, rule 3.3 (candor toward the tribunal)
- Civil Code section 47, subdivision (b)
- Code of Civil Procedure section 128.5 (bad-faith actions or tactics)
- Code of Civil Procedure section 128.7 (sanctions for unwarranted filings)
- Code of Civil Procedure section 338, subdivision (d)
- Code of Civil Procedure section 425.10
- Code of Civil Procedure section 425.16 (anti-SLAPP, including subdivisions (c)(1) fee-shifting and (g) discovery stay)
- Code of Civil Procedure section 430.10 (subdivisions (a), (c), (e), (f))
- Code of Civil Procedure section 430.40, subdivision (a)
- Code of Civil Procedure section 430.41 (meet and confer; subdivision (b) single-demurrer rule)
- Code of Civil Procedure section 430.50
- Code of Civil Procedure section 430.70
- Code of Civil Procedure section 437c, subdivision (g)
- Code of Civil Procedure section 904.1
- Evidence Code section 1220 (admissions of a party)
- Evidence Code sections 452 and 453

- Insurance Code section 790.03
- Insurance Code section 790.035

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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On May 5, 2026, I served the following document:

7 **DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF OPPOSITION TO**
8 **PLAINTIFF'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
11	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
12	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

13 Addressed as follows:

14 **PLAINTIFF, IN PRO PER**

15 Franciscus Dylan Rosario
16 7624 Melody Drive
17 Rohnert Park, CA 94928
18 soltrinox@gmail.com

19 I declare under penalty of perjury under the laws of the State of California that the foregoing
20 is true and correct. Executed on Sacramento, California on May 5, 2026.

21 *Serena Blithe*

22 Serena Blithe